Brazoria County District Court

Cause No. 2023-CV-0042

Joshua Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-10-23
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant further asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff changed lanes without first ascertaining that such movement could be made safely, failed to keep a proper lookout, and failed to yeild the right-of-way to vehicles lawfully occupying the lane, and such conduct proximately caused the sideswipe. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33, and requests that the trier of fact determine the percentage of responsibility of each claimant, defendant, settling person, and responisble third party designated under Section 33.004.

Third, Plaintiff's alleged damages were not proximately caused by the collision. Certain injuries, conditions, or treatment claimed by Plaintiff pre-existed the occurrence, arose from unrelated causes, or resulted from a subsequent event, and Defendant denies liability for any such damages. Defendant further asserts its right to a credit or offset for any settlement amounts paid to Plaintiff by any other party for the same damages.